

DELTA DENTAL OF WYOMING

Dental Benefits Contract

Prepared for:

City of Cheyenne

**DELTA DENTAL PLAN OF WYOMING GROUP BENEFITS CONTRACT
A WYOMING NON-PROFIT CORPORATION
D.B.A. DELTA DENTAL OF WYOMING**

This contract is effective the 1st day of July, 2025, by and between The City of Cheyenne hereinafter referred to as the Policyholder and Delta Dental of Wyoming hereinafter referred to as Delta Dental.

Payment of the first month's premium is considered acceptance of the terms and conditions of this contract.

Section I – Declarations

The benefits afforded in this contract are only with respect to such benefits as are indicated in this contract. Delta Dental's liability is limited to the benefits stated herein; subject to all terms of this contract having reference thereto.

- A. **Effective Date of Contract:** July 1, 2025
- B. **Renewal Date of Contract:** July 1, 2026
- C. **Contract Term:** 12 months
- D. **Group Number:** 1007
- E. **Eligibility (Subscriber & Dependents):** An eligible employee is a full-time employee who works 30 hours per week for the employer.

An eligible dependent is an eligible employees' legal spouse and children, including adoptive, stepchildren or foster children, through the end of the month age 26 is attained. Mentally or physically handicapped children shall be considered eligible dependents regardless of age.

- F. **Eligibility Period:** All new subscribers (and their dependents, if covered in Section E above) defined as eligible subscribers will be eligible for enrollment on the first day of the month following 30 days of full-time employment.
- G. **Coverage after termination:** If an employee's employment and/or coverage terminates while a covered person is receiving treatment under a predetermination of benefits which was approved while the covered person was eligible for benefits, benefits will NOT continue to be paid for such approved treatment.

Employees and dependents who have been terminated, voluntarily or involuntarily, the dependents of an employee upon the employee's death and employees in certain other situations may be entitled to an extension of benefits under COBRA at the employees' expense.

H. Covered Services

Delta Dental Pays:

	<u>PPO plus Premier</u>	<u>Premier</u>	<u>Non- Participating</u>
<u>Class 1 - Diagnostic & Preventive Services</u>			
Does not apply to annual maximum			
Cleanings or Periodontal Maintenance	100%	100%	100%
Bitewing X-rays	100%	100%	100%
Sealants	100%	100%	100%
Fluoride Treatments	100%	100%	100%
Space Maintainers	100%	100%	100%
Full mouth x-rays	100%	100%	100%
<u>Class 2 - Basic Services</u>			
Oral Surgery	80%	80%	80%
Restorations	80%	80%	80%
Endodontic Services	80%	80%	80%
Periodontic Services including Periodontal Maintenance coordinated with the Periodontal Maintenance in Diagnostic & Preventive services	80%	80%	80%
<u>Class 3 - Major Services</u>			
6 month waiting period for new enrollees			
Prosthodontics	50%	50%	50%
Crowns	50%	50%	50%
<u>Class 4 - Orthodontic Services</u>			
12 month waiting period for new enrollees			
Orthodontics for dependent children under age 19.	50%	50%	50%
<u>Deductible</u>			
Does not apply to Diagnostic & Preventive or Orthodontic services			
Per Person	\$50.00	\$50.00	\$50.00
Family	\$100.00	\$100.00	\$100.00
<u>Maximum Annual Benefit</u>	\$1,750.00	\$1,750.00	\$1,750.00
<u>Orthodontic Maximum Lifetime Benefit</u>	\$1,000.00	\$1,000.00	\$1,000.00

Participating Dentists: If the dentist is a Premier participating dentist, Delta Dental shall base payment on the lesser of the fee submitted on the claim form or the maximum plan allowance, as determined by Delta Dental of Wyoming. Delta Dental will send payment to the participating dentist and the subscriber will be responsible for any co-payment and/or any non-covered service.

Non-Participating Dentists: If the dentist is a non-participating dentist, Delta Dental shall base payment on the lesser of the fee submitted on the claim form or the non-participating dentist maximum plan allowance as determined by Delta Dental. It is the subscriber's responsibility to make full payment to the non-participating dentist.

For dental services received by an out of state dentist who is not a participating dentist in that state, the payment shall not exceed the amount that would be payable if such services had been provided by a participating dentist in Wyoming.

If the dentist is a participating dentist with Delta Dental in that state, the payment shall not exceed what would be payable if it were a participating dentist under this contract.

- I. **Deductible:** The deductible is per person total per contract year limited to a maximum of two deductibles per family per contract year on Class II and Class III benefits. The deductible does not apply to Class I and Class IV benefits.
- J. **Maximum Annual Benefit:** The maximum payment is per person total per contract year on Class II and III benefits.
- K. **Orthodontic Maximum Lifetime Benefit:** The maximum payment is per person total per lifetime on Class IV benefits.
- L. **Monthly Premium Payment**

Employee	\$ 39.20
Employee + Spouse	\$ 83.90
Employee + Child(ren)	\$ 94.55
Employee + Family	\$ 126.90

Premium billings will be sent monthly on the 15th of the prior month with a due date of the 1st of each month.

In the event that any Premiums payable pursuant to this Contract are not paid when due, and if such payment is not received within thirty one (31) days thereafter Delta Dental may immediately terminate all further benefits and be released from all further obligations hereunder; provided, however, Delta Dental may make payment to dentists for dental services authorized by Delta Dental prior to termination and for dental services which appropriately were performed without prior authorization by a dentist prior to such termination of benefits. In the event of termination as provided in this paragraph, Policyholder shall remain liable to Delta Dental for the sum of: (a) all benefit obligations paid and incurred by Delta Dental under this Contract since the Effective Date of this Contract; (b) plus 8.5 percent of such

amount to compensate Delta Dental for administrating this Contract; (c) less the premiums paid by Policyholder to Delta Dental.

In the event this Contract terminates for any reason, the Policyholder shall be liable for all incurred claims either pre-authorized or not pre-authorized on or after the date of the termination.

In the absence of an amendment mutually agreed upon between Policyholder and Delta Dental no change in Premium rates shall be made during the first year of the contract.

M. These rates are contingent upon:

The employer contributing 100% of the full cost of all eligible employees and their dependents and 100% of all eligible employees and 75% of all eligible dependents must be enrolled.

If enrollment requirements are not met, this Contract may be terminated by Delta Dental at will, or premiums may be adjusted.

Section II - Definitions

Annual Maximum Benefit - the maximum benefit each member is eligible to receive for covered services in a covered year.

Benefits - those dental services which are available under the terms of this Contract.

Benefit/Policy Handbook - outlines the benefits provided. The handbook is issued to the Policyholder and given to enrolled employees by the Policyholder.

COBRA - Consolidated Omnibus Budget Reconciliation Act is a law that requires certain employers to offer continued health insurance coverage to eligible employees and/or their dependents who have had their health insurance coverage terminated.

Contract - this document, including if applicable, any appendices, riders, amendments, or renewals now or hereafter issued or executed.

Contract Term - the period commencing on the Effective Date and terminating 12 months later and each yearly period thereafter.

Co-payment - the benefit payment that the subscriber must pay for covered services.

Deductible - the amount an individual and/or a family must pay toward covered services before Delta Dental begins paying for services under this contract.

Delta Dental - Delta Dental Plan of Wyoming, a non-profit dental service corporation, d.b.a. Delta Dental of Wyoming, acting for itself.

Dentist - a duly licensed dentist legally entitled to practice dentistry at the time and in the place services are performed.

Dependents - are a subscriber's lawful spouse, and children including step and adopted children.

Eligible Employee - means any employee who meets the conditions of eligibility.

Eligible Dependent - any of the dependents of an Employee, if dependents are eligible for benefits hereunder in accordance with the conditions of eligibility outlined in Section III of this Contract.

Eligibility Period - the date an employee's eligibility for benefits becomes effective under the terms of this Contract.

Grievance - any dissatisfaction with the administration, claims practices or provision of services by Delta Dental that is expressed in writing by or on behalf of an eligible person.

Group - the employer, association, union or other organization contracting with Delta Dental to provide benefits to its eligible employees or members and/or their dependents if applicable.

HIPAA (Health Insurance Portability and Accountability Act) - a federal law that requires health plans, including health care clearinghouses and any dentist who transmits health information in an electronic transaction, to use a standard format.

Maximum Plan Allowance - the amount that Delta Dental will pay for a service, supply or dental procedure.

Non-Participating Dentist - a licensed dentist who has not entered into a written agreement.

Participating Dentist - a licensed dentist who has agreed to render services in accordance with terms and conditions established by Delta Dental and has satisfied Delta Dental that he/she is in compliance with such terms and conditions.

Policyholder - the group that has purchased a dental insurance policy.

Predetermination - is the process by which Delta Dental determines if a procedure or treatment is a benefit under the enrollee's plan.

Premium rate - amounts payable monthly by Policyholder.

Subscriber - an eligible employee or member of the group who (a) has completed and signed the documents necessary for coverage under the contract, (b) has been accepted by Delta Dental as a subscriber, and (c) for whom the appropriate premium has been paid.

Summary of Benefits - a listing of the specific benefits and benefit limitations for dental benefits provided under the terms of this Contract. The summary of benefits is provided along with the benefits/policy handbook.

Benefits under this Contract shall be determined in accordance with the Covered Benefits section.

Section III. - Eligibility

A. General Eligibility Rules:

1. No person will be eligible for dental benefits under this contract unless the policyholder has either currently enrolled that person as a subscriber or currently listed or acknowledged that person as an eligible dependent.
2. Unless the eligibility requirements stated in the Eligibility Section are different, an eligible dependent is:
 - a. The legal spouse of the subscriber; or
 - b. A child of the subscriber who has not yet reached the end of the calendar month of his or her 26th birthday; and
 - c. A child of the subscriber or the subscriber's legal spouse if, pursuant to a court decree, the subscriber or the subscriber's legal spouse is financially responsible for the medical, health, or dental care of the child; or
 - d. A dependent child age 26, unless otherwise specified in this Contract, may continue to be eligible as a dependent if the dependent is medically certified as disabled and financially dependent upon the parent. A physician's certificate must be submitted to Delta Dental within six (6) months following your dependent attaining this age.

B. Effective Date of Eligibility:

1. Initial effective date: All persons enrolled as subscribers or listed or acknowledged as an eligible dependent on the effective date of this Contract are immediately eligible for dental benefits (unless otherwise noted on the summary of benefits).
2. After the initial effective date: For all subscribers (and their eligible dependents, if specified in this Contract) not associated with the Policyholder on the initial effective date of this Contract, eligibility for dental benefits will begin on the first day of the month following whichever of the following dates is applicable:
 - a. Newly hired or rehired employees: The date for which employment compensation begins plus the number of days specified as the eligibility period.
 - b. Spouse: Date of marriage.
 - c. Newborn: Date of birth.
 - d. Legal adoptions or guardianships: An adopted child from the earlier date the petition for adoption is filed or entry of the child in the adoptive home. Physical placement is not a requirement for coverage.

- e. Mentally or physically handicapped children shall be considered eligible dependents regardless of age.
- f. Dependents enlisted or on active duty in the military are not eligible.

C. Termination of Eligibility:

1. Eligibility for dental benefits will terminate for all subscribers and dependents under this contract at the earlier of:
 - a. The termination of this contract; or
 - b. The last day of the month for which payment has been made if the Policyholder fails to make the payments required by this Contract.

Eligibility of an individual subscriber, and of the eligible dependents of that subscriber, will also terminate if that subscriber ceases to be a subscriber as defined by this Contract. An eligible dependent also terminates upon failure to meet the eligibility requirements of this Contract. In no event will eligibility for any person covered under this Contract continue beyond the date Delta Dental is advised by the Policyholder to terminate that person's eligibility.

D. Loss of Eligibility During Treatment:

1. If a subscriber and/or eligible dependent lose eligibility while receiving dental treatment, only Covered Services completed while that individual was eligible under the plan will be payable.

E. Continuation Coverage - COBRA:

1. The other provisions of this section notwithstanding, eligibility for dental benefits will continue for an individual who is required to be provided with, and elects continuation coverage pursuant to the Consolidated Omnibus Budget Reconciliation Act (COBRA) provided: Continuation coverage is required to be provided under COBRA.
2. The Policyholder notifies Delta Dental that the individual is eligible for benefits. Coverage shall only be in effect up to the first day of the month after the individual notifies the Policyholder that he or she no longer wants coverage from Delta Dental or until the end of the individual's continuation coverage period, whichever occurs first. Further, coverage shall only remain in effect to the last day of the month for which payment has been made to Delta Dental by the Policyholder. However, an individual's coverage may be retroactively reinstated for the 60-day COBRA "election" period if the Policyholder pays the applicable rate for the period.
3. The individual is responsible for the costs of any service provided after an individual is no longer eligible for continuation coverage. Proper and timely notification should be given to Delta Dental by the Policyholder to terminate the

individual's coverage. The monthly rate that the Policyholder must pay on behalf of any individual who is provided coverage under this subsection will be based on the COBRA continuation coverage rates then in effect during that month. An individual who continues coverage will be considered either a subscriber or an eligible dependent under this Contract as long as coverage is provided under this section.

Delta Dental does not assume any of the obligations assigned by COBRA (unless a request is received in writing from the Policyholder, and a notification of approval is sent) to the Policyholder or any employer (including the obligation to notify potential beneficiaries of their rights or options under COBRA), and the Policyholder agrees that it will perform those obligations in full.

Section IV. - Benefits

Delta Dental agrees to provide benefits to subscribers and eligible dependents under the policies and procedures of Delta Dental, including the processing policies and under the terms and conditions of this contract, including, but not limited to, the following classifications, limitations and exclusions.

Written proof of loss must be furnished to Delta Dental at its office in case of claim for loss within twelve (12) months after the date of such loss. Failure to furnish such proof within the time required shall not invalidate nor reduce any claims if it was not reasonably possible to give proof within such time, provided such proof is furnished as soon as reasonably possible and in no event, except in the absence of legal capacity, later than one (1) year from the time proof is otherwise required.

Delta Dental shall pay the following benefits based upon the participating dentist's standard fee. The fee paid for any covered service shall be the lesser of: a) the fee submitted on the Attending Dentist's Statement (claim form); or b) the maximum plan allowance, as determined by Delta Dental of Wyoming.

Please see your benefit/policy booklet and your summary of benefits for more specific details on your plan coverage.

A. Class I Benefits:

Diagnostic & Preventive Services – Services and procedures to evaluate existing conditions and/or to prevent dental abnormalities or disease. These services include examinations, prophylaxis, periodontal maintenance, sealants, fluoride treatments and x-rays.

B. Class II Benefits:

Basic Services – These services include minor restorative services, including amalgam and composite fillings, periodontic services, endodontic services, oral surgery, and emergency treatment.

C. Class III Benefits:

Major Services – These services include major restorative services including crowns and prosthodontic services.

D. Class IV Benefits:

Orthodontic Services - These services include treatment and procedures to correct malpositioned teeth.

Section V. - Limitations

A. Limitations

The benefits for the following services are limited as follows unless specified in the benefit/policy handbook and/or the summary of benefits.

1. Exams and bitewing x-rays are a benefit once in a six (6) month period (not to exceed two in one year).
2. Prophylaxis is a benefit once in a six (6) month period (not to exceed two in one year)
3. Periodontal maintenance once in a six (6) month period (not to exceed two in one year) as an either/or benefit with a standard prophylaxis (cleaning) covered in Diagnostic & Preventive services.
4. Periodontal maintenance in Basic services once in a six (6) month period (not to exceed two in a year) coordinated with the periodontal maintenance under Diagnostic & Preventive services.
5. Topical fluoride applications for dependent children are a benefit once every twelve (12) months (until the end of the month age nineteen (19) is attained).
6. Space maintainers are a benefit only to maintain space of primary teeth (until the end of the month age nineteen (19) is attained).
7. Sealants on posterior permanent teeth (until the end of the month age nineteen (19) is attained). Coverage only applies to non-decayed, non-restored 1st and 2nd permanent molars. This is a benefit once every three (3) years per eligible tooth.
8. Restorative: Synthetic restorations (composites) on posterior teeth are a benefit.
9. Prosthodontic appliances (including bridges, partial and complete dentures), cast crowns, jackets, and cast restorations will be replaced only after five (5) years have elapsed following any prior placement of such appliances under any Delta Dental program. (Benefits may be subject to waiting periods - please check your summary of benefits)
10. Interim (surgical or temporary) dentures are considered optional services and are not a benefit. Replacement will be made of an existing prosthodontic appliance only if it is unsatisfactory and cannot be made

satisfactory. (Benefits may be subject to waiting periods – please check your summary of benefits)

11. Porcelain or metallic inlays and veneers are considered optional, and as such, are not covered services. (Benefits may be subject to waiting periods – please check your summary of benefits)
12. Fixed bridges and/or removable partials are not a benefit for children under age sixteen (16). An allowance equal to the cost of a temporary acrylic partial will be made. A fixed bridge is not a covered service when done in connection with a removable partial denture in the same arch. (Benefits may be subject to waiting periods – please check your summary of benefits)
13. Cast crowns, veneer crowns and jackets are not covered services for children age sixteen (16) or under. An allowance equal to the cost of an acrylic crown or preformed stainless-steel crown will be made. (Benefits may be subject to waiting periods – please check your summary of benefits).
14. Reline or rebase of dentures are a benefit only twice in a five (5) year period. (Benefits may be subject to waiting periods – please check your summary of benefits)
15. Full mouth x-rays once in a thirty six (36) month period are payable separately or in conjunction with other diagnostic x-rays.
16. Oral Surgery is limited to extractions and surgical dental alveolar procedures and soft tissue lesions. Fractures of the jaw and other oral surgery procedures are not benefits of the plan.
17. Orthodontic services are payable for eligible children of a subscriber who is less than 19 years of age. (Benefits may be subject to waiting periods – please check your summary of benefits)
18. If the treatment plan is terminated before completion of the case for any reason, Delta Dental's obligation will cease with payment for services completed up to the date of termination.
19. The dentist may terminate treatment, with written notification to Delta Dental and to the patient, for lack of patient interest and cooperation. In those cases, Delta Dental's obligation for payment of benefits ends on the last day of the month in which the patient was last treated.
20. Any charge for the replacement or repair of an orthodontic appliance furnished under any Delta Dental program will not be paid by Delta Dental and will be the responsibility of the patient.

21. Payment for Orthodontic services is based on the signed Financial Agreement and/or treatment length. Initial down payment is paid on banding date followed by payments for ongoing treatment.
22. Optional services: In all cases in which the patient selects a more expensive plan of treatment than is customarily provided, Delta Dental will pay the applicable percentage of the lesser fee. The patient is responsible for the remainder of the dentist's fee. In the event the treatment of choice is NOT a benefit of the plan, the patient is responsible for the dentist's fee.
23. If applicable, waiting periods may be waived if the group has had prior coverage for major and/or orthodontic services for the previous twelve (12) months.
24. Processing policies may limit benefits. Processing policies applied to a claim are noted on the Explanation of Benefits (EOB).
25. Crowns are not a benefit for cosmetic, attrition or preventive reasons.

Section VI. - Exclusions

This contract *does not* provide benefits for all dental treatment. Delta Dental does not pay for the services listed below. Additional specific exclusions are outlined in the benefit/policy handbook. Call us at 1-800-735-3379 if you are unsure if a certain service is covered.

- A. You are not covered for services or supplies received before the effective date of coverage.
- B. You are not covered for any fees charged by your dental office because of broken appointments.
- C. Your plan does not cover charges for consultation.
- D. Your plan does not cover any charges to complete forms.
- E. Your plan does not cover services for cosmetic surgery or dentistry for aesthetic reasons.
- F. Your plan does not cover any charges for the duplication of dental records.
- G. You are not covered for dental services that have not been completed.
- H. You are not covered for restorations or procedures necessary due to allergies or allergic reaction to dental treatment materials such as allergies to metals or mercury.
- I. You are not covered for prescription, non-prescription drugs, medicines or therapeutic drug injections.

- J. Your plan does not cover dental procedures, services, treatment and supplies which are not dentally necessary, or which do not meet generally accepted standards of dental practice.
- K. Your plan does not cover plaque control programs, oral hygiene instruction and dietary instructions.
- L. You are not covered for services or supplies when someone else has the legal obligation to pay for your care, and when, in the absence of this contract, you would not be charged. This may include, but not limited to, treatment of injuries intentionally inflicted or sustained while committing a criminal act as a form of civil disobedience.
- M. You are not covered for services provided in other than a dental office setting. This includes, but is not limited to, any hospital or surgical/treatment facility.
- N. Whether or not we have approved a treatment plan, you are not covered for treatment received after you or your group's coverage termination date.
- O. You are not covered for services or treatment performed by other than a licensed dentist or his or her employees.
- P. You are not covered for services or supplies that are or could have been compensated under Workers' Compensation laws, including services or supplies applied toward satisfaction of any deductible under your employer's Workers' Compensation coverage.
- Q. You are not covered for services for which the covered person has or had a right to payment under a program of a government or plan established by law except; (a) Medicare; (b) Medicaid; (c) the Civilian Health and Medical Program of the Uniformed Services (CHAMPUS) and (d) where the law does not permit this type of exclusion.
- R. You are not covered for prosthodontic services (Class III benefits), unless specified on the summary of benefits.
- S. You are not covered for orthodontic services (Class IV benefits), unless specified on the summary of benefits.
- T. Your plan does not cover appliances for bruxism, grinding or clenching of teeth unless your plan has coverage for temporomandibular joint (TMJ) dysfunction.
- U. Crowns are not a Benefit for cosmetic, attrition or preventive reasons.
- V. Any procedure which (1) is for the purpose of changing vertical dimension; or (2) relates to bite registration, bite analysis, or the correction of the bite; or (3) is for replacing tooth structure lost as a result of abrasion or attrition; or (4) is for equilibration or restorations for malalignment of the teeth; or (5) gnathologic recordings.

Section VII – Coordination of Benefits

A. All the benefits provided under this Contract are subject to this Section.

Program in this section means any contract providing benefits or services for or by reason of dental care or treatment; which benefits, or services are provided by or through:

1. any group service, or group prepayment plan, or group practice or any group, or blanket insurance coverage; or
2. coverage under labor-management trustee programs, union welfare programs, employer or employee benefit organization program; or
3. any governmental program, or coverage provided by any statute (other than Title XIX or the Social Security Act).
4. The term Program shall be construed separately with respect to each policy, contract or other arrangement for benefits or services and separately with respect to that portion of any such policy, contract, or other arrangement which reserves the right to take the benefits or services of other plans into consideration in determining its benefits and that portion which does not.

B. Program shall mean this entire Contract and all benefits hereunder.

C. Allowable Benefits means any necessary, reasonable and customary item of expense, at least a portion of which is covered under at least one of the Programs covering the person for whom claim is made or service provided.

1. When a Program provides benefits in the form of services rather than cash payments, the reasonable cash value of each service rendered shall be deemed to be both an allowable benefit and a benefit paid.

D. Claim Determination Period means a calendar year.

E. Dependent means, with respect to any other Program, any person who qualified as a dependent under such Program.

F. Effect on Benefits

1. This section shall apply in determining the benefits as to a person covered under this Contract for any Claim Determination Period if, for the Allowable Benefits provided as to such person during such period, the sum of (i) the benefits that would be payable under this Program in the absence of this provision, and (ii) the benefits that would be payable under all other Programs in the absence therein of contractual terms of similar purpose to this provision would exceed such Allowable Benefits.

2. As to any Claim Determination Period with respect to which this article is applicable, the benefits that would be payable under this Program in the absence of this provision for the Allowable Period shall be reduced to the extent necessary so that the sum of benefits under all other Programs, except as provided below shall not exceed the total of such Allowable Benefits. Benefits payable under another Program include the benefits that would have been payable had a claim been duly made for those benefits.

If, (i) another Program which is described above and which contains a provision coordinating its benefits with those of this Program would, according to its rules, determine its benefits after the benefits of this Program have been determined, and (ii) the rules set forth below would require this Contract to determine its benefits before such other Program, then the benefits of such other Program will be ignored for the purpose of determining the benefits under this Program.

G. The rules establishing the order of benefit determination are:

1. The benefits of a Program which covers the person on whose Allowable Benefits claim is based other than as a dependent shall be determined before the benefits of a Program which covers such person as a Dependent;
2. The benefits of a Program which covers the person on whose Allowable Benefits claim is based as a Dependent of both spouses, shall be determined according to the birthday rule, that is, the parent with the birthday occurring first during the year, will be determined as the covered person with allowable benefits.

When this section operates to reduce the total amount of benefits otherwise payable to a person covered under this Contract during any Claim Determination Period, each benefit that would be payable in the absence of this article shall be reduced proportionately and such reduced amount shall be charged against any applicable benefit limit of this Contract.

- H. Right to Receive and Release Necessary Information. For the purpose of determining the applicability of and implementing the terms of this section or any provision of similar purpose of any other Program, Delta Dental may, without the consent of or notice to any Covered Person, release to or obtain from any insurance company or other organization or person, any information, with respect to any Covered Person, which Delta Dental deems to be necessary for such purposes. Any Covered Person claiming benefits under this Program shall furnish to Delta Dental such information as may be necessary to implement this provision. Delta Dental shall not be required to determine the existence of any other Program, except through the Covered Person claiming benefits under this Contract.
- I. Multiple Coverage. If a covered person is eligible for benefits under two or more Programs underwritten by Delta Dental, and more than one of the Programs provides coverage for a particular service, Delta Dental will pay according to

Paragraph III of this provision. The cost of such payment will be distributed pro-rata between the applicable Programs.

- J. Facility of Payment. Whenever payments which should have been made under this Program in accordance with this article have been made under any other Program, Delta Dental shall, with the written consent of the Covered Person, pay over to any organization making such other payments any amounts it shall determine to be warranted in order to satisfy the intent of this article and amounts to be paid shall be deemed to be benefits paid under this Program and, to the extent of such payments Delta Dental shall be fully discharged from liability under this Program.
- K. Right of Recovery. Whenever payments have been made by Delta Dental with respect to Allowable Benefits in total amount, at any time, in excess of the maximum amount of payment necessary at that time to satisfy the intent of this article, Delta Dental shall have the right to recover such payments to the extent of such excess, from among one or more of the following, as Delta Dental shall determine: any persons to or for or with respect to whom such payments were made.

Section VIII - Conditions Under Which Benefits Shall Be Provided

- A. Benefits, except as otherwise provided in Section IV hereof, are available from the Eligibility Date of an Eligible Person.
- B. While an Eligible Person may elect the service of any dentist, Delta Dental does not undertake to guarantee the availability of or the quality of care of any particular dentist.
- C. In consideration of waiving physical examination of an Eligible Person and as a condition precedent to the approval of claims hereunder, Delta Dental shall be entitled to receive, to such extent as may be lawful, from any attending or examining dentist, or from hospitals in which a dentist's care is rendered, such information and records relating to attendance to or examination of, or treatment rendered to, an Eligible Person as may be required in the administration of such claims, provided, however, that Delta Dental shall in every case hold such information and records as confidential.

D. Claim Appeals

If a subscriber is not satisfied with the results of the processing of his or her claim for benefits, the subscriber may make a written appeal. When making the request for review or reconsideration, the subscriber should include his or her ID number and claim number on the documentation.

The subscriber and/or the subscriber's authorized legal representative have up to one hundred eighty (180) days to appeal Delta Dental of Wyoming's adverse benefit determination of an authorization of services or claim for benefits. Upon receipt of an appeal from a subscriber and/or subscribers authorized legal representative, Delta Dental of Wyoming will notify the subscriber and/or the subscribers authorized legal representative of its determination within a reasonable period of time, but no

later than forty-five (45 days) after receiving the request.

Note: In order to be eligible for external review, the timelines above must be followed, and the Delta Dental of Wyoming internal review process must first be exhausted.

Subscribers should mail or hand deliver their requests for an Internal Claims review to:

Delta Dental of Wyoming
6705 Faith Drive
PO Box 29
Cheyenne, WY 82009

Subscribers have the right to be represented by an attorney or other duly authorized legal representative at any stage of their appeal. Subscribers or their authorized legal representatives have the right to review documents that pertain to their appeal. These documents are on file in the office of Delta Dental of Wyoming at the above address. Delta Dental of Wyoming will need seventy-two (72) hours' notice to assemble the documents pertaining to an appeal.

For Internal Review, the claims review committee of Delta Dental of Wyoming will review the appealed claim(s) and consider all information available pertaining to the appeal. Whether or not the initial decision is changed, subscribers will receive a written response and explanation within forty-five (45) days of Delta Dental of Wyoming receiving their request for review.

E. External Claims Review Procedure

If Delta Dental of Wyoming denies the subscribers request for the provision of or payment for a dental care service or course of treatment on the basis that it is not dentally necessary, or on another similar basis, the subscriber may have a right to have the adverse determination reviewed by dental care professionals who have no association with Delta Dental of Wyoming and are not the attending dental care professional or dental care professionals partner by following the procedures outlined here.

The subscriber must submit a request for external review within one hundred twenty (120) days after receipt of the claims denial to Delta Dental of Wyoming's appeal's office and after all internal review processes have been exhausted. For a standard external review, a decision will be made within forty-five (45) days of receiving the request.

This request must be made in duplicate and include a fee of fifteen dollars (\$15) payable by check or money order to the Office of the Wyoming State Treasurer. This fee may be waived for a subscriber whose income is at or below the current federal poverty guidelines and who files a financial hardship application available upon request from the Wyoming Insurance Department.

When filing a request for an external review, the subscriber will be required to authorize the release of any dental records of the subscriber that may be required to be reviewed for the purpose of reaching a decision on the external review.

F. Dental Necessity Denials:

Expedited review: The subscriber may be entitled to an expedited review when his or her condition or circumstances require, and in any event within seventy-two (72) hours where:

- The timeframe for the completion of a standard review would seriously jeopardize the members life or health or would jeopardize his or her ability to regain maximum function; or
- The subscribers' claim concerns a request for an admission, availability of care, continued stay or dental care service for which he or she received medical emergency services, but has not been discharged from a healthcare facility.

To request an external review or an expedited review, the subscriber must submit the following completed documents that accompanied his or her claims denial:

- Request form
- Release for records
- Healthcare professionals' statement of dental necessity
- Any other documents necessary

The subscribers' request must be received at Delta Dental of Wyoming, 6705 Faith Drive, PO Box 29, Cheyenne WY, 82009 within one hundred twenty (120) days of the date of the Notice of Appeal Rights.

Section IX - Delta Dental Obligations

A. Delta Dental shall make available a method for predetermination of eligibility and benefits. The purpose of this administrative procedure is to ascertain, in advance of treatment, that the patient is eligible and that proposed professional services are covered benefits under this Contract. The availability of such predetermination method shall be communicated to Eligible Employees in the benefit/policy booklet which summarizes the benefits under this Contract and Delta Dental shall advise Participating Dentists as follows:

1. To complete and submit to Delta Dental standardized claim forms showing the Eligible Person's dental needs and the treatment necessary in the professional judgment of the dentist. Submission of a claim form in advance of treatment shall not be required for the rendition of emergency treatment, brief and routine services; and
2. To notify the patient of all actions taken by Delta Dental with respect to such claim form.

- B. Eligible Persons shall be responsible for determining the participating status of the dentist and for requesting predetermination of eligibility when receiving treatment from a dentist who is not a Participating Dentist.
- C. Delta Dental shall respond to the participating dentist and the patient, within five (5) days from the date of receipt of such a form. Delta Dental shall process the predetermination of benefits for treatment plans submitted and when satisfied from the claim form and other data submitted by the dentist that (a) the patient is an Eligible Person hereunder; (b) the services proposed are Benefits under this Contract; and (c) when applicable, that the total fees to be charged to Delta Dental and the Eligible Person do not exceed the participating dentist's standard fees. Such pre-certification shall be for a reasonable period of time, but not longer than the term of this Contract.
- D. Delta Dental shall make no payment for any services rendered to a patient who is not an Eligible Person hereunder at the time or rendition of the service, except to the extent of services performed during a predetermination issued by Delta Dental and except for completion of single procedures which are commenced at the time a patient was entitled to benefits by reason of such authorization.
- E. Payment of Benefits by Plans will be made within forty-five (45) days following receipt of statement of Dentist and claim of Covered Person for Benefit as follows
 - 1. For a Participating Dentist by direct payment to the Dentist.
 - 2. For a Non-participating Dentist by direct payment to the Covered Person.
- F. Notification of denial of benefits, for whatever reason, shall be sent to the Eligible Person and to the dentist.
- G. Delta Dental shall not be obligated to pay claims submitted more than twelve (12) months after the date of last service.

Section X - Policyholder's Responsibilities

- A. To pay Delta Dental in advance, the monthly rate in this contract. Delta Dental may at its sole option, send notification to the Policyholder of an adjustment in rates, benefits or co-payments to correct potential adverse group experience or award good experience.
- B. To enroll as subscribers all eligible employees of the Policyholder and to list, if covered, all eligible dependents of those employees, to the extent required under the contract. The Policyholder will advise Delta Dental monthly if there are changes to enrollment of employees and/or dependents.
- C. Policyholder shall provide information to all Covered Employees as to the existence and terms of this Contract and the right to receive services as provided herein from a dentist of each person's choice, as such choice may be exercised from time to time during the continued eligibility of such person.

- D. Policyholder shall advise each Eligible Employee to notify his dentist at the time of his first appointment that he is entitled to benefits under this Contract, and to provide his dentist with the group identification card.
- E. Policyholder shall permit Delta Dental by its auditors or other authorized representatives, on reasonable advance written notice, to inspect records of Policyholder in order to verify the accuracy of lists of Eligible Employees prepared by Policyholder and submitted to Delta Dental. Clerical errors or delays in keeping or relating data shall not invalidate eligibility which otherwise would be validly in force or continue eligibility which would otherwise be validly terminated, but, upon discovery of such errors or delays, an equitable adjustment of premium shall be made.

Section XI - Procedure Codes and Nomenclature

- A. Delta Dental will use procedure codes and nomenclature for approved procedures that are designed and approved by Delta Dental Plans Association as adopted from the most frequently used and reported dental procedures. These procedure codes are not all inclusive; however, the procedures are most often benefitted in dental plans. Delta Dental reserves the right to use ADA Codes and/or dental codes as determined by Delta Dental. All procedures, for which codes appear, are not a benefit of every dental plan.

Section XII - Termination

- A. This Contract may be terminated effective at the end of any Contract Term by either Policyholder or Delta Dental, by giving written notice to the other at least thirty (30) days prior to the date of termination.
- B. If the Policyholder fails for more than 31 days to make a required payment, then this contract may be terminated immediately. This Contract shall be renewed from year to year, after the first Contract Term unless terminated pursuant to this Section.
- C. If the group enrollment changes to less than 2 enrolled subscribers, Delta Dental will terminate the group contract effective the first of the month following less than 2 enrolled subscribers.

Section XIII - Notice

- A. Any notice under this Contract shall be sufficient if given by either the Policyholder of Delta Dental to the other addressed to the office stated in the attached application, and deposited, first class postage paid, in the U.S. Mail. Notification of any increase in premium will be given forty-five (45) days prior to its effective date, subject to any provisions or amendments applicable to premium increases.

Section XIV - General Provisions

- A. Delta Dental will provide at effective date to the Policyholder, and Policyholder will make available to each Eligible Employee, a policy booklet summarizing the benefits to which the employee is entitled under this Contract and to whom the benefits are

payable. If any amendment to this Contract shall materially affect any benefits described in such policy booklets, corrected amendments, booklets, or booklet inserts, showing the change shall be issued.

- B. Any controversy or claim not pertaining to dental service or treatment which arises out of or relates to this Contract or the breach thereof, by or among any two or more parties to this agreement, dentists, Eligible Persons or any of them, shall be settled by binding arbitration conducted by a single mutually acceptable arbitrator who shall conduct the arbitration in accordance with the rules of the American Arbitration Association. If the parties are unable to agree upon an arbitrator, they may apply to any court of competent jurisdiction for the appointment of an arbitrator in accordance with the Wyoming Uniform Arbitration Act. Judgment upon the award rendered by the arbitrator may be entered in any court having jurisdiction.

No agent of the Policyholder, employee, or Delta Dental has authority to change this Contract or waive any of its provisions. No change in this Contract shall be valid unless approved by an executive officer of Delta Dental and evidenced by endorsement hereon.

- C. No action at law or in equity shall be brought to recover on this Contract prior to the expiration of sixty (60) days after written proof of loss has been furnished in accordance with the requirements of this Contract. No such action shall be brought after the expiration of three (3) years after the time written proof of loss is required to be furnished.
- D. Any provision of this Contract which, on its Effective Date, is unenforceable under Wyoming law is hereby amended to the minimum requirements of such law.
- E. Payment in Error - If Delta Dental makes a payment in error, Delta Dental may require the provider of services, the Policyholder, or the ineligible person to refund the amount paid in error. Delta Dental reserves the right to correct payments made in error by deducting against subsequent claims, requiring refunds or by taking legal action.
- F. Assignability - This policy is not assignable, except with Delta Dental's prior written consent.
- G. Incontestability clause - Except for fraudulent misstatements in the application, the policy is incontestable after the expiration of three (3) years.
- H. Time limit on certain defenses - Misstatements by Policyholder: After two (2) years from the date of issue of this policy no misstatements, except fraudulent misstatements, made by the Policyholder in the application for such policy shall be used to void the policy or to deny a claim for loss incurred or disability, as defined in the policy, commencing after the expiration of such two year period.

The foregoing policy provision shall not be so construed as to affect any legal requirement for avoidance of a policy or denial of a claim during such initial two-

year period, in the event of misstatement with respect to age or occupation or other insurance.

- I. Non-disclosure - For the first two (2) years from the effective date of this policy, any material misstatement, non-disclosure or concealment, whether or not such are innocent or fraudulent, in relation to any matter affecting this insurance shall render this policy void at Delta Dental's option.
- J. Fraudulent claims - The making by the insured of any fraudulent claims shall render this policy null and void from the effective date and all claims under this policy shall be forfeited.
- K. Clerical error - If a clerical error is made, it will not affect the insurance of any insured. No error will continue the insurance of an insured beyond the date it should end under this policy terms.
- L. Conformity with state laws - On the effective date of this policy, any provision that is in conflict with the laws in the state where it is issued is amended to conform to the minimum requirement of such laws.
- M. Not in lieu of Workers' Compensation - This policy is not a Workers' Compensation policy. It does not provide Workers' Compensation benefits.
- N. Grace period on premiums - After the first premium is paid, we will allow a grace period of thirty-one (31) days for the payment of each subsequent premium amount due. During the grace period this policy will remain in force.
- O. Physical examination and autopsy - The Company, at its own expense, has the right and opportunity to examine the person of any individual whose loss is the basis of claim under the Policy when and as often as it may reasonably require during the pendency of the claim, and to make an autopsy in case of death where it is not forbidden by law.
- P. Entire Contract - This policy, including the application, contract and any amendments, riders or endorsements, constitute the entire contract of insurance.
- Q. Proceeds exempt from creditors - Except as otherwise provided by this policy, the proceeds are exempt from claims of creditors.
- R. Group Replacement - This policy provides for continuance of coverage for all participants when Delta Dental's contract replaces a prior plan's benefits.
- S. Payment of Benefits - Benefits are payable to the insured or to his designated beneficiary(ies) or to his estate. If the insured is a minor or otherwise not competent to give a valid release, the benefits may be made payable to his parent, guardian or other person actually supporting him.

Section XV – Renewal of Contract

Delta Dental shall, not less than 45 days prior to any renewal date of this Contract, notify Policyholder of any change in rates to be effective during the renewal term of this Contract.

Policyholder shall, not less than 30 days prior to any renewal date, notify Delta Dental if Policyholder elects not to renew said contract for a period of time equal to the Original Contract Term or equal to the term of the immediately preceding renewal term thereof.

If Policyholder does not notify Delta Dental of its election not to renew this Contract, this Contract shall be deemed to have been renewed for a term equal to the immediately preceding Contract term and all terms and conditions of this Contract shall remain in full force and effect for the renewal term as specified in this paragraph. Provided however, the rates charged for the benefits provided hereunder shall be as set forth in Delta Dental's notice of change in rates, as provided herein, during the renewal term. All notices required pursuant to this paragraph shall be in writing and delivered to the respective party not later than the times set forth herein for giving said notice.

In witness whereof, DELTA DENTAL PLAN OF WYOMING, by its duly authorized officer, has executed this Contract.

DELTA DENTAL PLAN OF WYOMING

BY:



Kerry P. Hall, CEO
President

Date: *April 25, 2025*

ACCEPTED: (POLICYHOLDER)
PAYMENT OF FIRST MONTHS PREMIUM CONSTITUTES ACCEPTANCE.

Company: City of Cheyenne

Group #: 1007